IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-512

CP (CAA) No. 105/230/232/PB/2019

IN THE MATTER OF:
Landcraft Developers Pvt. Ltd. With Champion Infraprojects Pvt. Ltd.
....Applicant

SECTION
U/s 230-232

Order delivered on 27.07.2022

CORAM:
SHRI P.S.N. PRASAD,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the RD : Adv. Swechcha Mishra

ORDER

Heard the submissions made by the Counsel for the Petitioner. Proxy Counsel for RD is present. The Counsel for RD has submitted that earlier they had pointed out, regarding non-issuance of notice to Unsecured Creditors. Proxy Counsel for RD has submitted that the same has been complied with now by the Applicant, therefore, they have no objection to proceed with the matter. An affidavit-cum-undertaken be filed by the Applicant and that the Transferee Company will take care of income tax liability of the Transferor Company. The Counsel for the Petitioner is also directed to file last three years Income Tax Returns of both the Companies.

Let once again e-notice be sent to the Income Tax Department for their appearance as well as for filing the reply and it may be made clear that if the Income Tax Department fails to appear on the next date of hearing, and fails to file their report, it will be presumed that they have nothing to say in this matter. List the matter on **30.08.2022.**

-Sd-

(RAHUL BHATNAGAR)
MEMBER (T)

-Sd-

(P.S.N. PRASAD)
MEMBER (J)

Md Saddam